1.3.4 Summary assistance tables for implementation have been inserted at the end of each section of part A and at the end of section 8 of part B of the Interim Guidance with the aim of facilitating the implementation of the Agreement. For reference, the responsibilities under the capacities as flag, port or coastal States in relation to the relevant provisions have been included. In addition, other supportive tools have been included for interest and assistance.

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
included. In addition, other supportive tools have been included for interest and assistance.

1.3.5 The Interim Guidance provides information regarding some of the benefits of ratification, acceptance, approval or accession, as appropriate, and implementation of the Agreement. This includes the expected reduction of accidents and in particular collisions within the waters of the flag State, the reduction of potential costs of search and rescue operations and pollution risks, with a positive impact on the national economy, resources and the environment.

1.3.6 Additionally, to assist Parties, Member States and stakeholders in the industry, the appendices provide guidelines for flag States, including abandon ship training and drills, radio equipment, shipborne navigational equipment, fire -fighting measures and life -saving appliances summary tables.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
appliances summary tables.

1.3.7 Member States ratifying or acceding to the Agreement need to ensure the provisions of the Agreement are reflected in their national law. This should also be supplemented by implementation measures. Parties should also ensure that there is coherence with th eir existing body of fishing vessel safety legislation and that there is a clear set of requirements communicated to the sector. Particular attention should be given to the case where a flag State has a pre -existing safety standard which is higher than the Agreement and, in such circumstances, the higher national standards should be retained for that State. It is also important that any conflict of laws is avoided in such situations and that there is clarity for the
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SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
important that any conflict of laws is avoided in such situations and that there is clarity for the industry as to what standards apply.

1.3.8 Parties should provide for measures to ensure compliance with the provisions of the Agreement to ensure effective enforcement of the Agreement.

SECTION 2 OVERVIEW OF THE AGREEMENT

2.1 Application and entry-into-force criteria of the Agreement

2.1.1 Unless expressly provided otherwise, the provisions of the Agreement apply to new fishing vessels of 24 metres in length and over.

2.1.2 The Agreement applies to seagoing fishing vessels including vessels also processing their catch entitled to fly the flag of a Party. Its provisions do not apply to vessels exclusively used:

.1 for sport or recreation;

.2 for processing fish or other living resources of the sea;

.3 for research and training; or

.4 as fish carriers.

2.2 Structure of the Agreement

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
.3 for research and training; or

.4 as fish carriers.

2.2 Structure of the Agreement

2.2.1 The Agreement , which updates and amends a number of provisions of the 1993 Torremolinos Protocol, consists of articles, an annex and an appendix as follows:

ARTICLES OF THE AGREEMENT

Article 1 General obligations2

Article 2 Interpretation and application of the 1993 Torremolinos Protocol and the 1977 Torremolinos Convention3

Article 3 Signature, ratification, acceptance, approval and accession

Article 4 Entry into force

2 Article 1 provides information to the Parties to the Agreement on general obligations. It also states that the annex to the Agreement shall constitute an integral part of the Agreement and a reference to the Agreement shall constitute at the same time a reference to the annex thereto.

3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol
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SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol shall apply to the Agreement. In applying these articles, the regulations in the annex to the 1993 Torremolinos Protocol, and the regulations in the annex to the 1977 Torremolinos Convention, a reference to "the present Protocol", or to "the Convention", respectively, shall be deemed to mean a reference to the Agreement. (See also articles of the 1993 Torremolinos Protocol relating to the Agreement).

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 9

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ARTICLES OF THE 1993 TORREMOLINOS PROTOCOL RELATING TO THE
AGREEMENT

Article 1 General obligations

Article 2 Definitions

Article 3 Application

Article 4 Certification and port State control4

Article 5 Force majeure

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
Article 2 Definitions

Article 3 Application

Article 4 Certification and port State control4

Article 5 Force majeure

Article 6 Communication of information

Article 7 Casualties to fishing vessels5

Article 8 Other treaties and interpretation

Article 11 Amendments

Article 12 Denunciation

Article 13 Depositary

Article 14 Languages

ANNEX REGULATIONS FOR THE CONSTRUCTION AND EQUIPMENT OF FISHING VESSELS

Chapter I General provisions

Chapter II Construction, watertight integrity and equipment

Chapter III Stability and associated seaworthiness

Chapter IV Machinery and electrical installations and periodically unattended machinery spaces

Part A General

Part B Machinery installations

Part C Electrical installations

Part D Periodically unattended machinery spaces

4 Interim Guidance regarding article 4 of the 1993 Torremolinos Protocol is provided under section 6.